

PseudoAI Privacy and Data Processing Addendum

1. Purpose of this Addendum

This Addendum describes how PseudoAI is used within the environment of the Controller and clarifies the responsibilities of all parties involved with regard to personal data and other sensitive information.

This Addendum supplements the agreement entered into between the parties.

This Addendum should be read together with the **PseudoAI Privacy Policy**, available at <https://pseudoai.nl/privacyverklaring>. The Privacy Policy describes PseudoAI's general privacy practices, while this Addendum governs the processing arrangements applicable to the relationship between PseudoAI and the Controller.

In the event of a conflict between this Addendum and the Privacy Policy with respect to processing performed on behalf of the Controller, this Addendum shall prevail.

2. Definitions

GDPR:

The General Data Protection Regulation (EU 2016/679).

Controller:

The organisation that determines the purposes and means of the processing of personal data.

Personal Data:

Any information relating to an identified or identifiable natural person.

Sensitive Information:

Personal data, confidential business information and other information designated as protected by the Controller.

PseudoAI:

The software solution provided by PseudoAI.

3. Deployment Model

PseudoAI is installed by default within the infrastructure of the Controller.

This may include:

- the Controller's own data centres;
- private cloud environments;
- public cloud environments managed by the Controller;
- hybrid environments.

Documents, prompts, files and other data remain within the Controller's environment unless the Controller itself decides to transmit data to external systems.

4. Roles of the Parties

PseudoAI provides software that enables personal data and other sensitive information to be:

- detected;
- classified;
- highlighted;
- masked;
- pseudonymised.

PseudoAI does not determine:

- which data is processed;
- why data is processed;
- which data is shared with AI systems;
- which retention periods apply.

These decisions are made exclusively by the Controller.

5. Processing Activities of the Software

On behalf of the Controller, the software may, among other things:

- analyse text;
- identify personal data;
- identify protected terms;
- perform classifications;
- generate warnings;
- apply masking;
- perform pseudonymisation;
- generate audit information.

These activities take place within the Controller's environment.

6. No Standard Access to Personal Data

Under the standard deployment model, PseudoAI does not have access to personal data processed by the Controller.

PseudoAI does not receive documents, prompts or datasets unless this is expressly necessary for support or maintenance activities.

7. Organisation-Specific Policies

The Controller may configure additional detection, classification and masking rules.

These may include:

- confidential business information;
- legal case files;
- strategic information;
- financial information;
- internal project names;
- organisation-specific protected terms;
- other sensitive information.

8. Supporting Control Layer

PseudoAI has been developed as an additional control layer.

PseudoAI supports users in identifying risks but does not replace:

- human review;
- privacy governance;
- information security policies;
- legal assessment;
- DPIA processes.

9. Limitations of Detection

The detection of personal data and sensitive information depends on:

- context;
- language use;
- spelling and notation;
- document structure;
- configuration;
- available detection rules.

PseudoAI does not guarantee that all personal data or sensitive information will be identified, highlighted or masked.

10. Responsibilities of the Controller

The Controller remains responsible for:

- the lawfulness of the processing;
- establishing appropriate privacy policies;
- establishing detection policies;
- providing instructions to users;
- selecting external systems;
- compliance with applicable laws and regulations.

11. Responsibilities of End Users

Users remain responsible for carrying out a reasonable final review before information is shared with external systems.

PseudoAI supports this review but does not assume this responsibility.

12. Use of External AI Systems

PseudoAI may be used in combination with external AI systems.

Examples include:

- ChatGPT;
- Microsoft Copilot;
- Gemini;
- Claude;
- other AI solutions.

The decision to use such systems is made exclusively by the Controller.

PseudoAI is not responsible for processing that takes place within these external systems.

13. Technical and Organisational Measures

PseudoAI supports appropriate security measures, including:

- TLS encryption;
- role-based access control (RBAC);
- logging;
- monitoring;
- secrets management;
- patch management;
- vulnerability management;
- incident response;
- audit capabilities.

The actual implementation of these measures within the Controller's environment remains the responsibility of the Controller.

14. Support and Maintenance

If support or maintenance requires access to personal data, such access will only take place:

- at the request of the Controller;
- for a specific purpose;
- for a limited period;

- subject to appropriate security measures.

15. Processor Role in Relation to Support

To the extent that PseudoAI gains access to personal data in connection with support or maintenance activities, PseudoAI acts as a processor within the meaning of Article 28 GDPR.

This role is limited to the activities concerned.

16. Confidentiality

Any person who may obtain access to personal data on behalf of PseudoAI is subject to appropriate confidentiality obligations.

17. Personal Data Breaches

PseudoAI will notify the Controller without undue delay of security incidents relating to personal data to which PseudoAI has gained access during support or maintenance activities.

18. Audit and Transparency

Upon request, PseudoAI will provide reasonable information regarding:

- security measures;
- privacy measures;
- support processes;
- deployment models.

19. Liability

The Controller acknowledges that the detection of personal data is technically dependent on context, configuration and the available detection methods.

Failure to detect specific personal data does not in itself constitute a failure in the provision of the Services.

20. Termination

Upon termination of the agreement, PseudoAI will delete or return any personal data that may have been received in connection with support or maintenance activities, unless legal obligations require otherwise.

Appendix A – Summary of Roles and Responsibilities

PseudoAI:

- provides detection and pseudonymisation software;
- supports privacy protection;
- does not have standard access to data.

Controller:

- determines the purposes and means of processing;
- determines which data is processed;
- determines which AI systems are used;
- remains ultimately responsible for the processing.

End Users:

- review the results;
- perform a final review;
- decide which information is shared.